

**SUPERIOR COURT OF THE STATE OF CALIFORNIA
IN AND FOR THE COUNTY OF SAN MATEO**

Law and Motion Calendar
Honorable David A. Silberman
800 North Humboldt Street, San Mateo, CA 94401
Department 11, Courtroom G
Monday, August 17, 2026 at 2 pm

If you intend to appear on any case on this calendar, you must give notice by 4:00 pm the court day before the hearing to the newly assigned department pursuant to California Rules of Court, Rule 3.1308(a)(1), and San Mateo County L.R. 3.403(b).

Failure to comply with notice as outlined will result in no oral presentation.

Notice of Appearance and Courtesy Copies

1. Email Dept11@SanMateoCourt.org before 4:00 pm the court day before with a copy to all parties or their counsel of record. The email must include the name of the case, the case number, and the name of the party contesting the tentative ruling.
2. Courtesy Copies: You must email a copy of any reply brief, or an Opposition to a Motion for Summary Judgment in an Unlawful Detainer matter to:
LawAndMotionReplyBriefs@SanMateoCourt.org

Day of Hearing

Appearances can be In Person or Remote. If appearing remotely by Zoom, please use your first and last name and mute your audio until your case is called. All parties must use a device with a camera if you are appearing remotely. Please login to the zoom hearing by 1:50 pm.

Remote Appearance Zoom Information

RECORDING OF A COURT PROCEEDING IS STRICTLY PROHIBITED.

<https://sanmateocourt.zoomgov.com/> Meeting ID: 161 964 0802 Password: 734616

TO ASSIST THE COURT REPORTER, the parties are ORDERED to: (1) state their name each time they speak and only speak when directed by the Court; (2) not to interrupt the Court or anyone else; (3) speak slowly and clearly; (4) connect from a computer if at all possible, rather than a cell phone; (5) if a cell phone is absolutely necessary, the parties must be stationary and not driving or moving; (6) no speaker phones under any circumstances; (7) provide the name and citation of any cases referenced; and (8) spell all names, even common names.

Case	Title / Nature of Case
2:00 PM LINE 1 24-CIV-01928	KIAYSHA COOPER VS. ESSEX PROPERTY TRUST
KIAYSHA COOPER ESSEX PROPERTY TRUST	ANDREW M MORROW ALI DELFOROUGH

Defendant and Cross-Complainant Essex Property Trust, Inc.'s Motion to Compel Plaintiff's Deposition and for Sanctions

TENTATIVE RULING:

Defendant Essex Property Trust, Inc.'s Motion to Compel Plaintiff's Deposition and for Sanctions is GRANTED with respect to the request to compel Plaintiff's deposition and GRANTED-IN-PART, as to Defendant's request for monetary sanctions, pursuant to Code Civ. Proc. section 205.450, as follows:

Code Civ. Proc. section 205.450(a) provides that if, after service of a deposition notice, a party to the action "without having served a valid objection under Section 205.410, fails to appear for examination, or to proceed with it," the noticing party "may move for an order compelling the deponent's attendance and testimony." (Code Civ. Proc. section 205.450.) Where the deponent fails to attend and produce documents, a motion to compel is required to be accompanied by a declaration stating that the petitioner has contacted the deponent to inquire about the nonappearance. (Id., at subd. (b)(2).)

On January 21, 2026, Defendant served a Notice of Deposition of Plaintiff Kiaysha Cooper on Plaintiff's counsel. (McDonough Decl., ¶¶2-3; Exhs. A, B.) Defendant sent a follow-up email on March 31, 2026, and received a response on April 7, 2026 that included a request for an extension of time to respond to written discovery but did not confirm the deposition. (Id., at ¶¶4-6.) The extension was granted provided the deposition was confirmed, and a further follow-up email was sent April 9, 2026, to which Plaintiff did not respond. (Id., at ¶¶6-8., Exh. C.) There is no evidence in the record that any objection to the Notice of Deposition was served. The deposition was held April 24, 2026, and Plaintiff did not attend. (Id., at ¶9.)

Defendant argues that it has complied with procedural requirements, but the supporting declaration does not indicate that Defendant contacted the deponent (after the date of the deposition) to inquire about the nonappearance. The Motion could therefore be denied for failure to satisfy this requirement. In these circumstances, where Plaintiff's counsel responded to communications attempting to confirm the deposition but did not acknowledge the request to confirm, the Court finds that Defendant's prior attempts at communication substantially comply with the requirement to inquire about the nonappearance. Allowing the motion to proceed is further supported by Plaintiff's failure to comply with the Court's Order to participate in an Informal Discovery Conference or oppose this motion.

The Motion is accordingly GRANTED and Plaintiff is ordered to attend a deposition within 20 days of notice of entry of this order.

Defendant requests an award of monetary sanctions in the amount of \$7,273.02, consisting of \$2,716 in legal fees for counsel attending the deposition, 1.5 hours at \$280/hr preparing the declaration and

supplementing this Motion, 3 hours at a \$250.00/hr associate rate preparing this motion \$147.05 in ground transportation, \$29.72 in meals, \$986.80 in airfare, a \$60.00 filing fee, and an anticipated \$840.00 preparing for and attending the hearing on this Motion. (McDonough Decl., ¶¶10-13.)

Monetary sanctions are awarded in favor of Defendant and against Plaintiff Kiaysha Cooper and Plaintiff's counsel, jointly and severally, in the amount of \$6,433.02, representing all expenses other than the anticipated time, which is not necessary, to be paid within 30 days of notice of entry of this order.

The Court notes that is concerned about the manner, in which Plaintiff is litigating (or not litigating) this case. In addition to this motion and the Plaintiff's failure to comply with the Court's IDC Order, the Court previously denied a motion on June 8, 2026 that lacked any meaningful legal support and there is another discovery motion on calendar that may, especially if no opposition is filed, also evidence a lack of diligence and support additional sanctions.

Any party who contests a tentative ruling must email Dept.11@sanmateocourt.org with a copy to all other parties by 4:00 p.m. stating, without argument, the portion(s) of the tentative ruling that the party contests.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, counsel for prevailing party shall prepare for the Court's signature a written order consistent with the Court's ruling pursuant to California Rules of Court, rule 3.1312 and provide written notice of the ruling to all parties who have appeared in the action, as required by law and by the California Rules of Court. Please note that Local Rule 3.403(b)(iv) states in part "prevailing party on a tentative ruling is required to prepare a proposed order REPEATING VERBATIM the tentative ruling" (emphasis added). The order should be e-filed only, do not email or mail a hard copy to the Court.

2:00 PM LINE 2

24-CLJ-03985 DISCOVER BANK VS. ROSA A GUERRA

DISCOVER BANK
ROSA A GUERRA

CHRISTINE SIDUGUEN

Plaintiff Discover Bank's Motion to Enter Judgment Pursuant to Stipulation

TENTATIVE RULING:

APPEAR

Plaintiff should be prepared to address (1) the significance of the fact plaintiff was never served with a summons in this case (or whether the proof of service simply wasn't filed); (2) how plaintiff verified defendant's current address for the purpose of serving this motion; (3) whether defendant has made payments after November 25, 2025; and the (4) the effect of plaintiff's failure to execute the stipulation until November 25, 2025 (after the purported breach had already occurred) and then signing this motion the next day in light of *Harris v. Rudin, Richman & Appel* (1999) 74 Cal.App.4th 299, 304-05.

2:00 PM LINE 3

24-CLJ-08355

WELLS FARGO BANK, N.A. VS. SIAOSI E FOLAU JR

WELLS FARGO BANK, N.A.
SIAOSI E FOLAU JR

HARLAN M. REESE
PRO SE

Plaintiff Wells Fargo Bank, N.A.'s Motion for Judgment on the Pleadings

TENTATIVE RULING:

Plaintiff Wells Fargo Bank, N.A.'s unopposed Motion for Judgment on the Pleadings is DENIED.

To the extent that it is even necessary for the Court to judicially notice the file in the instant case, Plaintiff's unopposed Request for Judicial Notice ("RJN") is GRANTED pursuant to Evidence Code Section 452 (d).

As a preliminary matter, Plaintiff Wells Fargo Bank, N.A. ("Wells Fargo") has failed to comply with the meet-and-confer requirements of Code of Civil Procedure section 439, subdivision (a). Before filing a motion for judgment on the pleadings, the moving party must meet and confer "in person, by telephone, or by video conference" with the party whose pleading is being challenged. (Code Civ. Proc., § 439, subd. (a).) The motion must then be accompanied by a declaration stating either the means by which the parties met and conferred or that the other party failed to meet and confer in good faith. (*Id.*, at subd. (a)(3).)

The declaration here shows only that Wells Fargo sent a letter to Defendant Siaosi E Folau Jr.: that letter both fails to request a meeting in person, by telephone, or by video conference and states Wells Fargo's intention to file the motion notwithstanding any absence of a sufficient meeting and conferral. (Apr. 6, 2026 Declaration of Anthony Lio, ¶ 1, exh. A ["If we are unable to reach a settlement prior to the hearing date, we will proceed said (sic) hearing"].) Whether in the discovery or pleading context, meeting and conferring requires "a serious effort at negotiation." (*Clement v. Alegre* (2009) 177 Cal.App.4th 1277, 1294.) The letter, expressing an intent to file the motion regardless and merely inviting Folau to ensure Wells Fargo fulfills its prefiling obligations, does not demonstrate that a serious effort has been made.

The Court nevertheless reached the merits of the motion and denies it on those merits.

"A motion for judgment on the pleadings has the same function as a general demurrer but is made after the time for demurrer has expired. Except as provided by CCP § 438, the rules governing demurrers apply—motion for judgment on the pleadings is equivalent to a demurrer." Motion for Judgment on the Pleadings, Cal. Prac. Guide Civ. Pro. Before Trial Ch. 7(I)-D (quotations and citations omitted). "A motion by plaintiff (or cross-complainant) can be made on the ground that the complaint states facts sufficient to constitute a cause of action against the defendant (or cross-defendant) and the answer does not state facts sufficient to constitute a defense to the complaint." *Id.* (citing Code of Civil Procedure Section 438(c)(1)(A)).

A general demurrer under Section 430.10(e) of the Code of Civil Procedure for failure to state a cause of action challenges defects that appear on the face of the pleading under attack; or from matters outside the pleading that are judicially noticeable. *Blank v. Kirwan* (1985) 39 C3d 311, 318.

“It is not necessary that the cause of action be the one intended by plaintiff. The test is whether the complaint states any valid claim entitling plaintiff to relief. Thus, plaintiff may be mistaken as to the nature of the case, or the legal theory on which plaintiff can prevail. But if the essential facts of some valid cause of action are alleged, the complaint is good against a general demurrer.” Cal. Prac. Guide Civ. Pro. Before Trial Ch. 7(I)-A (citations omitted)

“For the purpose of testing the sufficiency of the cause of action, the demurrer admits the truth of all material facts properly pleaded (i.e., all ultimate facts alleged, but not contentions, deductions or conclusions of fact or law).” Cal. Prac. Guide Civ. Pro. Before Trial Ch. 7(I)-A (citations omitted).

Plaintiff brings the instant motion pursuant to Code of Civil Procedure section 438 for \$13,337.52. Defendant has not filed a brief in opposition.

Defendant largely denies the allegations in the Complaint. RJN, Ex. A, Answer.

It is of note, in passing, that Plaintiff’s Motion to Deem Facts Admitted was granted, and the genuineness of any documents and truth of any facts in Plaintiff’s RFA’s, Set One were deemed admitted. Those admissions include that as of December 26, 2024, there was a balance owing at least \$11,967.52 on Defendant’s account and that the affirmative defenses asserted by Defendant in this matter lack merit and evidentiary support. RJN, Ex. B, Plaintiff’s Motion to Deem Requests for Admission Defendant’s Deemed Admissions Admitted, Ex. A. Those admissions would certainly be significant evidence in support of a motion for summary judgment.

But Plaintiff argues that the deemed admissions are sufficient to grant this motion. That is mostly wrong. *Columbia Cas. Co. v. Nw. Nat. Ins. Co.* (1991) 231 Cal. App. 3d 457, 468 (“In contrast, in order for judicial notice to support a motion for judgment on the pleadings by negating an express allegation of the pleading, the notice must be of something that cannot reasonably be controverted.”). The matters deemed admitted here relate to matters that can, at least in theory, be controverted. It is also of note, **while the Court is not suggesting it would be sufficient**, that Defendant does not admit breaching any agreement, only that an account with a balance belongs to him. The main case cited by Plaintiff, *Barsegian v. Kessler & Kessler* (2013) 215 Cal. App. 4th 446, 452 is not a judgment on the pleadings case and does not support granting this motion. Plaintiff also cites *Pang v. Beverly Hosp., Inc.* (2000) 79 Cal. App. 4th 986. *Pang* is a procedurally unusual case where the Plaintiff moved for summary adjudication and the trial court denied that motion but, on its own motion, converted it to a motion for judgment on the pleadings for defendant and granted it based on admissions Plaintiff made in her motion. It does not help Defendant here in this posture.

This court notes that this is the third almost identical motion that Wells Fargo has filed in the Court in the last few months raising this same argument (in three separate cases). It has now been rejected three times.

Any party who contests a tentative ruling must email Dept.11@sanmateocourt.org with a copy to all other parties by 4:00 p.m. stating, without argument, the portion(s) of the tentative ruling that the party contests.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, counsel for Wells Fargo shall prepare for the Court's signature a written order consistent with the Court's ruling pursuant to California Rules of Court, rule 3.1312 and provide written notice of the ruling to all parties who have appeared in the action, as required by law and by the California Rules of Court. Please note that Local Rule 3.403(b)(iv) states in part "prevailing party on a tentative ruling is required to prepare a proposed order REPEATING VERBATIM the tentative ruling" (emphasis added). The order should be e-filed only, do not email or mail a hard copy to the Court.

2:00 PM LINE 4

25-CLJ-01923 ELG CIRCLE, LLC VS. MONICA CURTIS, ET AL

ELG CIRCLE, LLC
MONICA CURTIS

VIN A. FICHTER
YURI VORONIN

Defendant and Cross-Complainant Girl Scouts of Northern California's Motion for Reclassification From Limited Civil Jurisdiction to Unlimited Civil Jurisdiction

TENTATIVE RULING:

Defendant/Cross-Complainant Girl Scouts of Northern California's ("GSNC") unopposed "Motion for Reclassification from Limited Civil Jurisdiction to Unlimited Civil Jurisdiction," filed Jan. 28, 2026, is GRANTED. (Code Civ. Proc. § 403.040.)

Cross-Complainant GSNC should have requested re-classification in its October 2025 Amended Cross-Complaint, and should have paid the reclassification fee at that time. (Code Civ. Proc. § 403.030.) Nonetheless, under § 403.040, the Court finds good cause to reclassify the case. GSNC shall pay the reclassification fee. (Code Civ. Proc. § 403.040(c).) The Court Clerk SHALL RECLASSIFY the case as an unlimited civil jurisdiction case upon payment by GSNC of the required fee.

On a separate note, upon review of the parties' filings to date, including the Amended Cross-Complaint, the Court notes that this case may be particularly suitable to alternative dispute resolution. Cross-Defendants Monica Curtis et. al.'s March 4, 2026 Case Management Conference statement states that the parties agreed to participate in mediation, and were (at that time) scheduling a mediation for June 2026. The Court Orders that the parties meet and confer and file a joint update with the Court on the status/progress of mediation. The Court has concerns that the parties have not been meaningfully communicating with each other to discuss a resolution to this dispute.

Any party who contests a tentative ruling must email Dept.11@sanmateocourt.org with a copy to all other parties by 4:00 p.m. stating, without argument, the portion(s) of the tentative ruling that the party contests.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, counsel for prevailing party shall prepare for the Court's signature a written order consistent with the Court's ruling pursuant to California Rules of Court, rule 3.1312 and provide written notice of the ruling to all parties who have appeared in the action, as required by law and by the California Rules of Court. Please note that Local Rule 3.403(b)(iv) states in part "prevailing party on a tentative ruling is required to prepare a proposed order REPEATING VERBATIM the tentative ruling" (emphasis added). The order should be e-filed only, do not email or mail a hard copy to the Court.

2:00 PM LINE 5

26-CIV-00606 SHC HALF MOON BAY, LLC, A DELAWARE LIMITED LIABILITY COMPANY VS. MAXIM
WORLD USP LLC

SHC HALF MOON BAY, LLC, A DELAWARE LIMITED LIABILITY COMPANY MAXIM WORLD USP LLC	DANIELLA MIKHAEL-FARD LYN R AGRE
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Lyn R. Agre's Motion to be Relieved as Counsel

TENTATIVE RULING:

On August 5, 2026, counsel for Maxim World USP LLC appeared ex parte, asking to be relieved. At the ex parte hearing, counsel represented to the court that counsel had notified the client of the ex parte using what counsel knew to be the client's current address and email.

The Court nevertheless denied the ex parte request, but issued the following Order:

"The court *sua sponte* made and granted a motion shortening time on a motion to be relieved. The motion shall be filed on August 6, 2026 and comply with Rule 3.1362 and utilize forms MC-51, 52 and 53. Any opposition shall be filed by August 12, 2026 at 1 p.m. Any reply may be filed by August 14, 2026 at 1 p.m. Courtesy copies of all filings related to this motion must be emailed to Dept11@sanmateocourt.org."

While it does not appear that counsel provided the necessary courtesy copies, counsel otherwise complied with this Order and the Court CONTINGENTLY grants the motion to be relieved (effective upon the filing of the proof of service of the signed order). The court notes that counsel filled out the MC-52 incorrectly in that counsel does not explain in 3(b)(1)(d) HOW counsel confirmed that the email and address were current. Nevertheless, as noted above, counsel assured the court at the ex parte hearing that it was. Accordingly, the court Orders that counsel file a brief supplemental declaration confirming HOW counsel knows those addresses are current. Assuming that contingency is satisfied, the Court will execute the MC-53 once a courtesy copy of that filed declaration is emailed to Dept11@sanmateocourt.org.

2:00 PM LINE 6

23-CIV-00365

MARGARET FRIED VS. GOPI MATTEL

MARARET FRIED
GOPI MATTEL

JEFFREY A. FELDMAN
PRO SE

Defendant Gopi Mattel's Motion to Compel Compliance with Deposition Subpoena; and Opposition to Non-Parties' Request for Monetary Sanctions

TENTATIVE RULING:

Initially, the Court notes defendant provided the improper address for the hearing because the matter was reassigned to the Honorable David A. Silberman, Department 11, effective May 11, 2026. Department 11 is located at the Central Branch Courthouse, Courtroom G, 800 North Humboldt Street, San Mateo, CA 94401. (See Cal. Rules of Court, rule 3.1110 [the Notice "must specify" the location of the hearing].) The Court notes the most recent filings associated with the instant motion have corrected the judicial officer and location in the caption therefore the Court finds the error harmless.

Defendant Gopi Mattel's motion to compel compliance of non-parties Aria Khalili and his company, Paria LLC ("Pariax") with a deposition subpoena for personal appearance and production of documents and things issued by this Court on September 3, 2025 was withdrawn by defendant on August 11, 2026.

However, Non-parties Pariax LLC's and Aria Khalili opposed the motion, requested sanctions pursuant to Code and continues to pursue them. That request is DENIED. The trial court is required to award monetary sanctions against any person "who unsuccessfully makes or opposes a motion to compel an answer or production, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust." (Code Civ. Proc., § 2025.480, subd. (j), italics added.) This section does not provide a statutory basis to order sanctions because the motion was withdrawn. That is also true of Code of Civil Procedure Section 2023.010(h). The Court would have authority to award sanctions under Section 2023.030(a) in the abstract, but it does not conclude based on the showing made that Defendant was engaged in the misuse of the discovery process. It appears that Defendant was pursuing discovery that he believed was appropriate, but that he did it in an inept way. And as a consequence, he is now foreclosed from pursuing the evidence in discovery.

The Court is not condoning Defendant's conduct. In addition to the inept and discourteous way in which he pursued the discovery, the fact that it resulted in a continuance of the trial and his failure to respond to Pariax's attempts to resolve the dispute, the Court notes with particular concern Defendant's acknowledged mis-citation of legal authority for his underlying motion and his statement that he has "adopted a practice of independently verifying every legal authority before filing." (Declaration of Gopi Mattel iso motion to withdraw filed August 11, 2026, ¶ 5.) This is a requirement, not a practice to adopt: legal standards require that courts apply the rules of practice and procedure equally to self-represented litigants and represented litigants alike. (See *Rappleyea v. Campbell* (1994) 8 Cal.4th 975, 984-985 [a party's election to act as his own attorney does not entitle him to lenience as to the rules of practice and procedure].)

The Court also notes, with appreciation, the diligent meet and confer attempts counsel Miller attempted with Defendant Mattel in effort to avoid court intervention. (Declaration of Donald A. Miller in opposition to motion to compel filed August 4, 2026, ¶¶ 7-12.).

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If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, counsel for the prevailing party shall prepare for the Court's signature a written order consistent with the Court's ruling pursuant to California Rules of Court, rule 3.1312 and provide written notice of the ruling to all parties who have appeared in the action, as required by law and by the California Rules of Court. Please note that Local Rule 3.403(b)(iv) states in part "prevailing party on a tentative ruling is required to prepare a proposed order REPEATING VERBATIM the tentative ruling" (emphasis added). The order should be e-filed only, do not email or mail a hard copy to the Court.

**UD LAW AND MOTION CALENDAR
MONDAY, AUGUST 17, 2026**

2:00 PM **LINE 7**

26-UDL-00685 LEE & LUM REAL ESTATE, LLC VS. ALOK ARORA, ET AL

LEE & LUM REAL ESTATE, LLC
ALOK ARORA

MICHAEL J. MCLAUGHLIN
ANTHONY F. VENTURA

Defendant Alok Arora, DMD's Motion to Consolidate Related Actions Pursuant to Code of Civil Procedure 1048, 403, and 404.1; or, in the Alternative, to Stay Unlawful Detainer Action No. 26-UDL-00685

TENTATIVE RULING:

Initially, the Court notes that Defendant has not provided the address for the hearing. Department 11 is located at 800 North Humboldt Street, San Mateo, CA 94401, Courtroom G. (*See* Cal. Rules of Court, rule 3.1110 [the Notice "must specify" the location of the hearing].)

The unopposed Motion to Consolidate Related Actions (the "Motion") brought by Defendant Alok Arora, DMD is GRANTED.

Plaintiff alleges that on or about August 1, 2015, it leased the commercial premises at 695 Oak Grove Avenue, Suite 300, Menlo Park, California 94025 (the "Premises") to Defendant for a ten-year term pursuant to a lease (Complaint, Exh. 1 (the "Lease")), the first option to extend for five years of which Defendant exercised as of August 1, 2025. The Lease requires Defendant to maintain commercial general liability insurance.

Plaintiff further alleges that on or about October 2, 2025, the Premises suffered water intrusion. Plaintiff asked Defendant to file a claim for compensation for damages flowing therefrom with his commercial general liability insurer, but Defendant refused, so Plaintiff did so as an additional insured. The insurer denied coverage because Defendant's policy excluded property rented by Defendant, such as the Premises.

Per allegations, Defendant's failure to have maintained the commercial general liability insurance required by the Lease constitutes a material default thereof. Plaintiff served upon Defendant a Thirty-Day Notice of Default on April 3, 2026, but Defendant failed to comply with its requirement by the time it expired. Plaintiff served Defendant with a Three-Day Notice to Cure Covenant(s) or Quit on May 11, 2026, with which Defendant failed to comply by the time it expired, and Defendant continues in

possession of the Premises without Plaintiff's permission. The latter notice included an election of forfeiture.

Through its Motion to Consolidate Related Actions (the "Motion"), Defendant seeks to consolidate for all purposes a civil action in which the parties are reversed (Case No. 26-CIV-05047 (the "Civil Case")) with the instant (the "UDL Case").

Consolidation is a procedure for uniting separate lawsuits for trial, where the cases are pending in the same court and involve common questions of law or fact. (Code Civ. Proc., § 1048, subd. (a).) The purpose of consolidation is to enhance trial-court efficiency by avoiding duplication of evidence and procedures, and to avoid the substantial danger of inconsistent adjudications as a result of trying the same issues before different factfinders. The Court considers whether the cases to be consolidated have common issues, and whether undue confusion or prejudice likely would result from consolidation. (*Todd-Stenberg v. Dalkon Shield Claimants Trust* (1996) 48 Cal.App.4th 976, 979 (*Todd-Stenberg*).) "The trial court's decision will not be disturbed on appeal absent a clear showing of abuse of discretion." (*Todd-Stenberg, supra*, 48 Cal.App.4th 976, 978-79.)

The Court finds consolidation to be appropriate on the following grounds:

1. Plaintiff and Defendant are the only parties to the Civil Case, and both are the only parties to the instant action. (Chhabria Decl., ¶ 4.)
2. The two cases involve the same Lease, the parties' same decade-long course of dealing regarding its insurance covenant, and the same two notices, as well as common questions of law and fact, such as whether Defendant's insurance coverage satisfied paragraph 7.1 of the Lease. (*See id.*, ¶¶ 4 & 6.) Accordingly, discovery, motion practice, and trial all will involve overlapping legal and factual issues, documents, witnesses, testimony, and evidence.
3. Defendant would be prejudiced if he were not afforded a full opportunity to litigate his claims and defenses before their foreclosure by the summary UDL Case, but consolidation would not prejudice Plaintiff, which continues to hold and manage the Premises. In particular, Defendant's theories of mistake, waiver, impossibility, and estoppel cannot be resolved within the summary UDL Case in the same manner in which they can be in the civil action. The UDL Case is not one in which rent is overdue (in fact, Defendant asserts that Plaintiff rejected his June 2026 tender of rent), nor one of holdover (since four years of the Lease term remain). Instead, the following complex issues of contract and equity are here disputed:

whether a specific insurance covenant, as Plaintiff now construes it, is even capable of performance, whether Plaintiff's own course of conduct modified or waived that covenant, and whether the entire default theory was manufactured to defeat Defendant's right of first refusal.

(Memorandum of Points and Authorities in Support of Motion, 7:20-23.) Accordingly, the Court has the power and the obligation to consolidate the two cases.

4. Consolidation of the two cases would promote judicial economy and fairness, and avoid inconsistent findings, rulings, orders, and judgments. Further, consolidation would not confuse a
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jury. “Actions may be consolidated, in the discretion of the court, whenever it can be done without prejudice to a substantial right.” (*State Farm, supra*, 47 Cal.2d 428, 430 (quotation omitted).)

This Court already has ordered the cases “related,” finding that:

Each of these cases involves Lee & Lum Real Estate’s lease with Alok Arora, DMD and whether that lease was breached in relation to an insurance provision. The Court therefore finds that under California Rules of Court, Rule 3.300 the cases are “related.”

(Order Deeming Cases Related, filed on June 25, 2026 (the “Order”).)

The Court may consolidate cases completely, or partially for trial only. (Code Civ. Proc., § 1048, subd. (a).) Defendant requests complete consolidation into the Civil Case, because the Civil Case is already an unlimited civil action that encompasses all of the issues between the parties, while the UDL Case is limited to the single question of possession. The Court has discretion to designate the lead case: “Unless otherwise provided in the order granting the motion to consolidate, the lowest numbered case in the consolidated case is the lead case.” (Cal. Rules of Ct., rule 3.350(b).)

For all of these reasons, the Court GRANTS the Motion to consolidate the proposed cases for all purposes. The Civil Case shall be the lead case.

Any party who contests a tentative ruling must email Dept.11@sanmateocourt.org with a copy to all other parties by 4:00 p.m. stating, without argument, the portion(s) of the tentative ruling that the party contests.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, counsel for prevailing party shall prepare for the Court’s signature a written order consistent with the Court’s ruling pursuant to California Rules of Court, rule 3.1312 and provide written notice of the ruling to all parties who have appeared in the action, as required by law and by the California Rules of Court. Please note that Local Rule 3.403(b)(iv) states in part “prevailing party on a tentative ruling is required to prepare a proposed order REPEATING VERBATIM the tentative ruling” (emphasis added). The order should be e-filed only, do not email or mail a hard copy to the Court.
